

22STCV14121 22STCV14121

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Case Number: 22STCV14121 Hearing Date: July 16, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

GONZALO CETINA, et al.,

Plaintiffs,

vs.

CITY OF BALDWIN PARK,

Defendant.

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CASE NO.: 22STCV14121

[TENTATIVE] ORDER DENYING DEFENDANT'S MOTIONS FOR SUMMARY ADJUDICATION (HUERTA, PARRA, REAL, VALDIVIA); OVERRULING DEMURRER TO AMENDED SUPPLEMENTAL COMPLAINT; DENYING MOTION TO STRIKE

Dept. 506

8:30 a.m.

July 14, 2026

On April 28, 2022, Plaintiffs filed this action against Defendant City of Baldwin Park.

On January 22, 2026, Plaintiffs filed an Amended Supplemental Complaint ("ASC").

Now pending before the Court are four motions for summary adjudication, a demurrer to the ASC, and a motion to strike the ASC.

MOTIONS FOR SUMMARY ADJUDICATION

Defendants' motions fail for the same reasons explained in the Court's orders denying the MSA brought against Plaintiff Cetina and Plaintiff Jimenez.

A. Separate Statement

The Court adopts its admonishments from its prior MSA orders. The separate statements for these motions are improper for the same reasons.

B. Request For Judicial Notice

Defendant's requests for judicial notice are denied as irrelevant to the disposition of this motion.

C. Evidentiary Objections

The Court declines to rule on any of Defendant's voluminous objections because the evidence is not material to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

D. Discussion

Defendant's motions are "made on the grounds that the undisputed material facts establish that Plaintiff will be unable to prove an essential element" of the first, second, third, fourth, and sixth causes of action. (Motions at p. 2.)

For each claim in the complaint, the defendant moving for adjudication must satisfy the initial burden of proof by showing that one or more elements of a cause of action cannot be established or that there is a complete defense to a cause of action. (Code Civ. Proc., § 437c, subd. (p)(2); *Scaif v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520 (*Scaif*).) Then the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Scaif*, *supra*, 128 Cal.App.4th at p. 1520.)

1. Defendant Raises Issues That Cannot Be Adjudicated Through This Motion.

Defendant argues that the Allegedly Unlawful Activities include time-barred allegations and allegations that exceed the scope of the pre-lawsuit notice of claims and DFEH charges. (Huerta Motion at pp. 14-15; Parra Motion at pp. 13-15; Real Motion at pp. 15-18; Valdivia Motion at pp. 14-16.)

None of these arguments "completely dispose[] of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).) Each cause of action is based on multiple grounds. These issues may be more appropriately raised through motions in limine and other evidentiary matters, but they cannot be adjudicated through this motion.

2. Defendant Does Not Meet Its Initial Burden Regarding Plaintiffs' Purported Lack of Evidence.

Defendant argues that Plaintiffs' claims fail because Plaintiffs have not identified evidence for their claims. Summary judgment law "continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854, footnote omitted.) Defendant must therefore "present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Id.* at p. 855.) "[A] moving defendant may rely on factually devoid discovery response to shift the burden of proof." (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.)

Defendant states that Plaintiffs "lack[] admissible evidence" for their claims. (Huerta UMF 9, 16, 18-21, 30, 39, 41-44, 53, 54; Parra UMF 9, 16, 18-21, 30, 38, 39, 48, 50-53, 63-66; Real UMF 9, 16, 18-21, 30, 38, 39, 48, 50-53, 63-66; Valdivia UMF 8, 14, 16-18, 26, 33, 34, 42, 44-46, 56-59.) The proffered evidence of Defendant's actions and motivation does not affirmatively establish that Plaintiffs lack evidence. To the extent that Defendant relies on Plaintiffs' discovery responses, those are dated from April 2023 to December 2024, and they are not evidence that Plaintiffs currently lack any evidence to support their claims.

3. Defendant's Remaining Arguments Also Fail.

Defendant admits that some alleged actions, if proven, could constitute "adverse employment actions" under FEHA. (See Huerta Motion at p. 17; Parra Motion at pp. 17-18; Real Motion at p. 20; Valdivia Motion at p. 18.)

For harassment, Defendant also admits that some alleged actions are outside the scope of necessary job performance and could constitute harassment. (Huerta Motion at p. 19; Parra Motion at p. 19; Real Motion at p. 21; Valdivia Motion at pp. 19-20.)

For hostile work environment, Defendant states (without detailed discussion or analysis) that the alleged activities are not severe, pervasive, or a concerted pattern of harassment. (Huerta Motion at pp. 21-22; Parra Motion at p. 21; Real Motion at pp. 23-24; Valdivia Motion at pp. 21-22.) Defendant's arguments about its lack of unlawful motivation fare no better. (See Huerta Motion at pp. 22-24; Parra Motion at pp. 21-24; Real Motion at pp. 24-26; Valdivia Motion at pp. 22-24.)

Defendant also argues that the retaliation claims fail because Plaintiffs have not provided any evidence that their conduct was in opposition to forbidden practices and they did not engage in protected activity. (Huerta Motion at pp. 24-26; Parra Motion at pp. 24-27; Real Motion at pp. 26-29; Valdivia Motion at pp. 24-28.) At a minimum, Huerta alleges that he reported Sergeant Velebil's misconduct; Parra alleges that he complained about Chief McLean leaking testing materials to other officers; Real alleges that he complained about promotional testing, how members of the "outside" panel were actually friends of some of the applicants, and that Hispanic officers faced discrimination and retaliation; and Valdivia alleges that he also reported Chief McLean's unfair testing process for promotions. (E.g., Complaint ¶¶ 57, 161-162, 181, 270.)

E. Conclusion

The motions for summary adjudication are DENIED.

DEMURRER TO AMENDED SUPPLEMENTAL COMPLAINT

On February 18, 2026, Defendant filed a demurrer to the ASC.

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

Defendants argue that the "new allegations fail state a claim for relief," and "[t]he ASC attempts to impose liability for conduct which is either not actionable, or which is not alleged to have been caused by an unlawful motive." (Demurrer at p. 9.)

A supplemental complaint alleges additional facts occurring after the prior complaint was filed. (See Code Civ. Proc., § 464, subd. (a).) These allegations supplement, not supersede, the existing allegations; they do not allege new causes of action.

"A demurrer must dispose of an entire cause of action to be sustained." (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) Defendant's demurrer does not do this for any full cause of action.

The demurrer is OVERRULED.

MOTION TO STRIKE

On February 18, 2026, Defendant filed a motion to strike portions of the ASC.

The court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court

rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

Defendant moves to strike various "Irrelevant and Improper Matters Alleging Post-Employment Activities." (Motion at p. 2.) According to Defendant, certain alleged conduct is not an adverse employment action, and post-employment allegations do not establish liability.

For the reasons explained in Plaintiffs' Opposition, it is not clear from the face of the ASC that these allegations are irrelevant or improper. Defendant's arguments would be better suited for motions in limine and evidentiary objections, not a motion to strike the pleading.

The motion to strike is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 14th day of June 2026

Hon. Thomas D. Long
Judge of the Superior Court